

Court No. - 37

Case :- WRIT - C No. - 10431 of 2012

Petitioner :- Akram

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Mohd. Nizam Uddin

Respondent Counsel :- C.S.C.

Hon'ble Vineet Saran,J.

Hon'ble Ashok Pal Singh,J.

Put up on 1.3.2012, as a fresh case, showing the name of Sri Praveen Kumar Srivastava as counsel for the respondent.

Order Date :- 27.2.2012

dps

(Ashok Pal Singh, J)

(Vineet Saran, J)

Court No. - 37

Case :- WRIT - C No. - 10431 of 2012

Petitioner :- Akram

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Mohd. Nizam Uddin

Respondent Counsel :- C.S.C.,Praveen Kumar Srivastava

Hon'ble Vineet Saran,J.

Hon'ble Ashok Pal Singh,J.

As a last opportunity time is granted to learned counsel for the respondents to obtain instruction till 14.3.2012.

Put up on 14.3.2012 as a fresh case.

Order Date :- 1.3.2012

AKJ

(Ashok Pal Singh,J.) (Vineet Saran,J.)

Court No. - 37

Case :- WRIT - C No. - 10431 of 2012

Petitioner :- Akram

Respondent :- State Of U.P. And Another

Petitioner Counsel :- Mohd. Nizam Uddin

Respondent Counsel :- C.S.C., Praveen Kumar Srivastava

Hon'ble Sunil Ambwani,J.

Hon'ble Pankaj Naqvi,J.

1. Heard Shri Mohd. Nizam Uddin, learned counsel for the petitioner, Shri Praveen Kumar Srivastava, learned counsel representing Executive Engineer, U.P. Power Corporation, Vidyut Nagariya Vitran Khand IIIrd, Madhyanchal Vidyut Vitran Nigam Limited, II-A Model Town, Bareilly - respondent no.2.

2. The petitioner is the owner of a shop opposite S.D. Plaza, (Patel Nagar), Police Station Prem Nagar, District Bareilly. It is alleged that the shop has been let out and in which welding work is being carried out. On an inspection made on 14.9.2011 by the officer of the electricity department along with police it was found that occupier of the shop was unauthorizedly drawing electricity without valid electric connection of the required load. A First Information Report was lodged against the petitioner on 14.9.2011 in case crime no.2793 of 20011, under Sections 135 of the Electricity Act, 2003 (for short the Act). A provisional assessment was made against the petitioner for unauthorizedly drawing the electricity and a sum of Rs.2,53,184/- was required to be paid by him under Section 126 (1) of the Act.

3. The petitioner filed objection to the provisional assessment stating that for the criminal offence of theft of electricity under Section 135 of the Act he pleaded guilty on which the offence was compounded under section 152 of the Act, on which he has deposited Rs.80,000/-.

4. He alleges in the writ petition that the petitioner has let out the shop., however he did not make any such statement of fact in his representation dated 7.10.2011 filed against the provisional assessment before the Executive Engineer. In his representation he submitted that he has been provided connection for 2 KW and has been regularly paying the bills and if any excess amount was found, the petitioner could have been subjected to the assessment instead of lodging an FIR against him. It is stated that the

petitioner was not present at Bareilly on 14.9.2011 when the checking was made. The shop was closed at that time and no work was carried out. He also submitted that provisional assessment was made without any basis and is highly excessive.

5. Learned counsel appearing for the electricity department submits that objection against the provisional assessment was decided by the Executive Engineer. He has produced the order dated 24.10.2011 passed by the Executive Engineer by which he appears to have decided the objection of the petitioner.

6. We have examined the order dated 24.10.2011 and find that it cannot be sustained. In first paragraph the Executive Engineer has stated that the petitioner's representation dated 7.10.2011 was considered sympathetically and was rejected. In the second paragraph he has stated that for the irregularities found he is directed to deposit a sum of Rs.2,53,184/- within a week failing which recovery proceeding will be drawn against him under Sections 3 and 5 of the Act. Order dated 24.10.2011 passed by the Executive Engineer is taken on record. The order does not refer to any fact nor contains reasons.

7. In the present case after the compounding fees of Rs.80,000/- was deposited under Section 152 of the Act, the acceptance of the sum of money for compounding an offence with sub-section (1) shall be deemed to amount to an acquittal. The order however does not relieve the petitioner from civil liability of assessment provided under Section 126 of the Act for which an appeal is also provided under Section 127 of the Act. Section 126 (1) and (3) is quoted below: -

"126. (1) If on an inspection of any place or premises or after inspection of the equipments, gadgets, machines, devices found connected or used, or after inspection of records maintained by any person, the assessing officer comes to the conclusion that such person is indulging in unauthorized use of electricity, he shall provisionally assess to the best of his judgment the electricity charges payable by such person or by any other person benefited by such use.

(3) The person, on whom a notice has been served under subsection (2) shall be entitled to file objections, if any, against the provisional assessment before the assessing officer, who may, after affording a reasonable opportunity of hearing to such person, pass a final order of assessment of the electricity charges payable by such person."

8. Where the person, on whom an order is served under sub-Section (2) of Section 126 of the Act, files an objection against the provisional assessment before the assessing officer, the officer is required to afford him a reasonable opportunity of hearing and then to pass final order of assessment of the charges payable by such person. The provision of reasonable opportunity and obligation to pass order of assessment requires not only consideration of objection and a decision on the charges payable but should also record whether the basis of assessment is correct. The assessing officer is required to record, in his order, whether the assessment is made in accordance with the Rules and in accordance with the provisions of U.P. Electricity Supply Code, 2005. The order is appealable under Section 127 of the Act. The reasons given in the order and the basis of assessment is subject to the review by the appellate authority. In the present case, we find that the order dated 24.10.2011 does not meet the requirement of Section 126 of the Act. It has been passed mechanically without looking into the facts, the objections raised by the petitioner and complying with the requirements of sub section (3) of Section 126 of the Act.

9. The writ petition is, therefore, allowed. The order dated 24.10.2011, which has been on record, is set aside. The Executive Engineer, U.P. Power Corporation, Vidyut Nagariya Vitran Khand IIIrd, Madhyanchal Vidyut Vitran Nigam Limited, II-A Model Town, Bareilly - respondent no.2 is required to pass fresh order in accordance with sub-Section (3) of Section 126 of the Act after affording a reasonable opportunity of hearing to the petitioner. In case the petitioner is still aggrieved, he may file an appeal under Section 127 of the Act.

Order Date :- 14.3.2012

Anupam